

21TRCV00051 21TRCV00051

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 21TRCV00051 Hearing Date: August 7, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

palos verdes bay club, inc.

;

Plaintiff,

vs.

CONSTRUCTION

SERVICE GROUP INC DBA HUNT BROS ROOFING.

, et al.;

Defendant.

Case

No.:

21TRCV00051

Hearing

Date:

August
7, 2026

Time:

1:30 p.m.

[tentative]

Order RE:

(1)

PLAINTIFF PALOS VERDES BAY CLUB, INC.'S MOTION
TO TAKE OFF CALENDAR, OR IN THE ALTERNATIVE TO STRIKE, DEFENDANT CSG/HUNT
BROS.' MOTION FOR SUMMARY JUDGMENT OR SUMMARY ADJUDICATION

(2)

PLAINTIFF PALOS VERDES BAY CLUB, INC.'S
REQUEST FOR MONETARY SANCTIONS

MOVING PARTY: Plaintiff, Palos Verdes Bay
Club, Inc.

RESPONDING

PARTY: No opposition brief.

(1)

Plaintiff

Palos Verdes Bay Club, Inc.'s Motion to Take Off Calendar, or in the
Alternative to Strike, Defendant CSG/Hunt Bros.' Motion for Summary Judgment or
Summary Adjudication is DENIED as MOOT pursuant to Code of Civil Procedure 437c, subdivision (a)(3).

(2)

Plaintiff

Palos Verdes Bay Club, Inc.'s Request for Monetary Sanctions is DENIED pursuant
to Code of Civil Procedure section 128.5, subdivision (f)(1)(A).

The Court considers the moving papers filed on July 24, 2026, and the notice
of withdrawal filed on August 4, 2026.

To date, no opposition brief has been filed.

BACKGROUND

Factual Background

On January 25, 2021, plaintiff Palos Verdes Bay Club, Inc. ("Plaintiff") filed the Complaint against Construction Service Group Inc. doing business as Hunt Bros Roofing, Bradley Hunt, National Roofing Consultants, Inc., and DOES 1 through 25.

On May 12, 2021, Plaintiff filed the First Amended Complaint against Construction Service Group Inc. dba Hunt Bros Roofing, National Roofing Consultants, Inc., Antis Roofing and Waterproofing, LLC, and DOES 2 through 25.

On July 6, 2021, Plaintiff filed the Second Amended Complaint ("SAC") against Construction Service Group Inc. dba Hunt Bros Roofing, Bradley Hunt, National Roofing Consultants, Inc., Antis Roofing and Waterproofing, LLC, and DOES 2 through 25. The SAC includes the following causes of action: (1) Negligence and (2) Breach of Implied Warranties.

On July 28, 2021, the parties filed a stipulation to allow James River Insurance Company to file an answer in intervention. The Court signed the stipulation on the same day.

On September 2, 2021, National Roofing Consultants, Inc. filed a cross-complaint against cross-defendants Construction Service Group Inc. dba Hunt Bros Roofing, Antis Roofing and Waterproofing, LLC, and DOES 1 through 10. The cross-complaint included the following causes of action: (1) Indemnification; (2) Apportionment of Fault; and (2) Declaratory Relief.

On November 1, 2021, the parties filed a stipulation to allow certain underwriters at Lloyd's London to file an answer in intervention. The Court signed the stipulation on the same day.

On August 12, 2022, National

Roofing Consultants, Inc. dismissed its cross-complaint without prejudice.

On August 30, 2022, the Court dismissed Bradley Hunt from the SAC without prejudice at Plaintiff's oral request.

On June 5, 2023, Plaintiff amended the SAC to name Broadstreet Energy Corp. as DOE 2. On the same day, Plaintiff filed another amendment to the SAC, naming Regen America Inc. as DOE 3.

On August 30, 2023, the Court entered a default against Broadstreet Energy Corp.

On October 30, 2023, Plaintiff amended the SAC to name M. Roy Nelson, Inc. doing business as Horizon Management Company as DOE 4.

On January 16, 2024, Plaintiff dismissed M. Roy Nelson, Inc. dba Horizon Management Company without prejudice.

On May 30, 2024, Regen America Inc. filed the cross-complaint against cross-defendants Palos Verdes Bay Club, Inc., Antis Roofing & Waterproofing, LLC, and DOES 1 through 100. The cross-complaint includes the following causes of action: (1) Breach of Contract; (2) Open Book Account; (3) Account Stated; (4) Quantum Meruit; (5) Conversion; (6) Indemnification; (7) Contribution; (8) Apportionment of Fault; and (9) Declaratory Relief.

On July 8, 2025, February 18, 2026, and May 26, 2026, the parties submitted joint stipulations to waive and extend the five-year statute of limitations for bringing the case to trial.

On June 10, 2026, James Rover Insurance Company ("Defendant"), as Intervenor on behalf of Defendant Construction Service Group, Inc. d/b/a Hunt Bros Roofing, filed the Motion for Summary Judgment, Alternatively Summary Adjudication. This motion was scheduled to be heard on September 2, 2026.

On June 18, 2026, Defendant

filed the Motion to Specially Set Hearing for Summary Judgment/Adjudication, again scheduling the hearing for September 2, 2026.

On June 29, 2026, Defendant filed the Ex Parte Application for Order Shortening Time to Advance Hearing on Motion to Specially Set Motion for Summary Judgment Hearing. On July 1, 2026, the Court denied this ex parte application.

On July 23, 2026, Plaintiff filed the Ex Parte Application for Order Specially Setting and Advancing the Hearing on Plaintiff's Motion to Take Off Calendar Defendant CSG's Motion for Summary Judgment. On July 27, 2026, the Court placed this ex parte application off calendar due to defective notice.

Procedural Background

On July 24, 2026, Plaintiff filed this motion. Following that, on July 27, 2026, Plaintiff filed the Ex Parte Application for Order Specially Setting and Advancing the Hearing on Plaintiff's Motion to Take Off Calendar Defendant CSG's Motion for Summary Judgment. On July 30, 2026, the Court granted this ex parte application, scheduling the motion to be heard on August 7, 2026.

On August 4, 2026, Defendant filed Notice of Withdrawal of Defendant's Motion for Summary Judgment, Alternative Summary Adjudication. To date, no opposition brief has been filed.

LEGAL STANDARD

"The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading." (Code Civ. Proc., § 437c, subd. (a)(3).)

DISCUSSION

Plaintiff seeks a court order to either remove from the calendar or, in the alternative, to strike Defendant's Motion for Summary Judgment, or Alternatively for Summary Adjudication, filed on June 10, 2026, which is currently scheduled for a hearing on September 2, 2026. (Notice of Motion, p. 2:7-10.) This request is premised on the assertion that the scheduled hearing date violates Code of Civil Procedure section 437c, subdivision (a)(3). (Notice of Motion, p. 2:7-11.) However, on August 4, 2026, Defendant formally withdrew its motion for summary judgment, or alternatively, motion for summary adjudication. Consequently, Plaintiff's motion is MOOT.

Request for Monetary Sanctions

Moreover, Plaintiff requests monetary sanctions in the amount of no less than \$4,306.50 in accordance with Code of Civil Procedure section 128.5 and the Court's inherent authority under Code of Civil Procedure section 128. (Motion, p. 4:1-22.)

"A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a).) "A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (f)(1)(A).)

Here, Plaintiff makes this request for sanctions concurrently with its request to remove from the calendar or strike Defendant's motion for summary judgment or adjudication. Although sanctions are warranted, the request does not comply with Code of Civil Procedure Section 128.5, subd. (f)(1)(A). As such, the request is DENIED without prejudice.

Furthermore, the Court lacks authority to grant sanctions pursuant to Code of Civil Procedure Section 128 pursuant to *Vidrio v. Hernandez* (2009) 172 Cal.App.4th 1443. In *Vidrio*, the Court of

Appeal has clarified that “trial courts have no inherent power to impose monetary sanctions” under Code of Civil Procedure section 128. (Vidrio, @ 1455.)

As such, Plaintiff's request for monetary sanctions is DENIED.

ORDERS

1) Plaintiff

Palos Verdes Bay Club, Inc.'s Motion to Take Off Calendar, or in the Alternative to Strike, Defendant CSG/Hunt Bros.' Motion for Summary Judgment or Summary Adjudication is DENIED as MOOT.

2) Plaintiff

Palos Verdes Bay Club, Inc.'s Request for Monetary Sanctions is DENIED.

3) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 7, 2026

Tamara
Hall

Judge
of the Superior Court